

ELIZABETH II



1982 CHAPTER xviii

An Act to provide for the redemption of debenture stock issued by the Derwent Valley Railway Company; for the variation of enactments relating to the Company; and for other purposes. [30th July 1982]

WHEREAS—

(1) The Derwent Valley Light Railway Company (hereinafter called “the Company”) were incorporated by the Derwent Valley Light Railway (Transfer, &c.) Order 1907 with power to Cd. 3811. construct and operate certain railways authorised by the Derwent Valley Light Railway Order 1902 between the city of York and Cd. 1246. Cliffe Common in the former East Riding of the county of York:

(2) The name of the Company was changed to the Derwent Valley Railway Company by the Derwent Valley Light Railway Order 1973:

S.I. 1973/537.

(3) The construction of the said railways was duly completed, although as a result of a decline in the traffic thereon the length of the Company’s line of railway was reduced by successive closures between 1965 and 1981 from approximately 16 miles to approximately 500 yards:

1863 c. 118.

(4) Under the powers of the Companies Clauses Act 1863 (as incorporated in the Derwent Valley Light Railway Orders 1902 to 1915) and of other enactments applicable to the Company the Company have issued certain debenture stock:

(5) The enactments under which the said debenture stock has been issued and the terms of issue thereof do not authorise the redemption of the stock:

(6) The closure of the greater part of the Company's line of railway and the sale of land thereby rendered surplus has left the Company with substantial cash reserves for which there is no foreseeable use consistent with the statutory objects of the Company:

(7) It is therefore expedient that the Company should be empowered to redeem the said debenture stock and that the other provisions of this Act should be enacted:

(8) The objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Derwent Valley Railway Act 1982.

(2) The Derwent Valley Light Railway Orders 1902 to 1973 and this Act may be cited together as the Derwent Valley Railway Act and Orders 1902 to 1982.

Interpretation.

2. In this Act—

“the Company” means the Derwent Valley Railway Company;

“the existing enactments” means the Derwent Valley Light Railway Orders 1902 to 1915 and any enactment incorporated therewith.

Redemption
of debenture
stock.

3.—(1) Notwithstanding anything to the contrary in the terms and conditions on which any debenture stock issued by the Company under the existing enactments before the passing of this Act, but subject to the provisions of this section, the Company, if so authorised by a resolution of a general meeting held not earlier than three months after the passing of this Act, may with the agreement of the holder thereof redeem at par any such debenture stock.

(2) The Company may use for the purpose of paying off debenture stock under this section such monies as may from time to time be available out of revenue or raised by the sale of any capital asset and which are not required for the purposes for which they would otherwise be applicable but for this section.

4. All costs, charges and expenses of and incidental to the Costs of Act. preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be defrayed out of revenue.



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